

		and fully address its potential liability for “negligently preparing, handling, and serving the drink” to Plaintiff, including failing to appropriately hand the hot drink to Plaintiff. Defendant relies solely on its employee’s declaration and surveillance footage of the incident. The cursory employee declaration states only that its employee secured the lid on the coffee cup prior to handing it to Plaintiff and the cup was not hot. This evidence does not address the full scope of the alleged breaches as set forth above. Moreover, it is not clearly shown from the surveillance footage provided by Defendant that no act of Defendant caused or contributed to the spill. Defendant’s employee states that “[p]rior to the spill, Plaintiff had sole and full control of the coffee cup.” However, no facts are stated showing the employee observed Plaintiff’s grip on the cup or otherwise establishing how he knew Plaintiff had full control of the cup. Defendant’s evidence does not exclude the possibility that Plaintiff may possess or may reasonably obtain evidence sufficient to establish her claim. Defendant’s evidence is insufficient to establish, as a matter of law, that Defendant did not breach any duty or that Plaintiff’s conduct was the sole proximate cause of her injuries. As such, Defendant failed to meet its initial burden of demonstrating the nonexistence of a triable issue of material fact. Accordingly, the motion is DENIED. The Court declines to rule on the parties’ evidentiary objections as not material to the disposition of the motion. (<i>Code Civ. Proc.</i>, § 437c(q).) <i>Plaintiff shall give notice of this ruling.</i>
13.	Moreno v. City of Santa Ana 24-1372127	Before the Court are two motions for terminating, issue, evidentiary and/or monetary sanctions filed by plaintiff Manuel Moreno (Plaintiff) against defendant City of Santa (the City). For the reasons set forth below, both motions are DENIED. “[T]he trial court has wide discretion to order discovery and broad powers to enforce those orders.” (<i>Hartbrodt v. Burke</i> (1996) 42 Cal.App.4th 168, 175; <i>Vallbona v. Springer</i> (1996) 43 Cal.App.4th 1525, 1545.) This includes the “broad discretion to manage discovery [citation], including selecting an appropriate penalty for a party’s refusal to obey a discovery order” or other misuse of the discovery process, so long as the sanction is appropriate to the dereliction and does not exceed what is required to protect the interests of the party entitled to but denied discovery. (<i>Padron v. Watchtower Bible & Tract Society of New York, Inc.</i> (2017) 16 Cal.App.5th 1246, 1262; <i>Lopez v. Watchtower Bible & Tract Society of New York</i> (2016) 246 Cal.App.4th 566, 604 (Lopez).) Motion No. 1 (ROA 244)

Plaintiff moves for sanctions against the City for the City's violation of this Court's January 8, 2026, discovery order as it pertains to Form Interrogatory No. 216.1.

This motion initially came on for hearing on April 16, 2026. The Court continued the motion to May 28, 2026, for the City to provide a second further response to the subject Form Interrogatory, as the Court deemed the initial further response to be clearly deficient. (See ROA 275.) On May 18, 2026, Plaintiff filed a supplemental brief and supplemental declaration which includes the City's further verified response to the subject Form Interrogatory, as ordered by the Court. The City's response to Form Interrogatory No. 216.1 is now code compliant as the City either identifies facts, witnesses and documents for each of the affirmative defenses, or responds that none exist. (See Ex. A to ROA 295.)

In the supplemental brief, Plaintiff contends the responses are "woefully inadequate." However, the City answers the call of the question for its general denial and for each of its special or affirmative defenses asserted in its answer to the complaint, as ordered by the Court. As the City has now complied with the Court's January 8, 2026, discovery order, the sanctions sought by Plaintiff are not appropriate in this instance. (See *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992 ["The trial court cannot impose sanctions for misuse of the discovery process as a punishment."].)

Based on the foregoing, the motion is **DENIED**.

Motion No. 2: (ROA 257)

Plaintiff moves for sanctions against the City for the City's violation of this Court's January 8, 2026, discovery order as it pertains to Requests for Production of Documents (RFP) Nos. 1-148.

Plaintiff contends the City's further responses to the subject RFP violate the Court's January 8, 2026 Order because the responses (1) fail to identify by Bates numbers which specific documents are responsive to which requests as required by *Code of Civil Procedure section 2031.280(a)*; (2) contain objections which Plaintiff contends should be removed given the Court's January 8, 2026 order; and (3) are improperly qualified to state that the City will produce only "non-privileged" documents.

Plaintiff failed to demonstrate noncompliance with the Court's January 8, 2026, discovery order. The City supplemented its objection-only responses with further substantive responses and produced responsive documents as ordered. The further responses are code compliant. (See *Code Civ. Proc.*, § 2031.210(a).) Further, the City's opposition shows it complied with *Code of Civil Procedure section 2031.280*, subdivision

		(a). (See <i>Code Civ. Proc.</i>, § 2031.280(a); see also, Hernandez Decl. ¶¶ 4, 7, Exhs. 1, 3.) In addition, in its January 8, 2026, discovery order, the Court did not order the City to serve further responses without objections or order that any privilege objections were waived. The City’s inclusion of objections and a qualification for non-privileged documents thus does not violate the Court’s order. In any event, the City responded substantively notwithstanding the objections and indicated in its opposition that it will prepare and submit a privilege log. Plaintiff complains in the Reply that the Document Production Index does not indicate any documents were produced for a number of the RFP. However, the requests Plaintiff points to appear to be requests in which the City stated either it does not have responsive documents in its possession, custody, or control, or it would produce responsive documents, “if any.” (See, e.g., Response to RFP Nos. 15, 16, 18, 28, 29, 30, 31, 37, 38, 39, 41-53.) Thus, it is not clearly shown that documents have been improperly withheld. Based on the foregoing, the motion is DENIED. <i>Counsel for the City is ordered to give notice of these rulings.</i>
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